

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Casados	Team: Team # 5	CCRB Case #: 201101271	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 01/30/2011 9:30 PM	Location of Incident: § 87(2)(b)	Precinct: 77	18 Mo. SOL 7/30/2012	EO SOL 7/30/2012	
Date/Time CV Reported Mon, 01/31/2011 3:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/31/2011 3:20 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			077 PCT
2. POM Denis Omahoney	05585	947313	077 PCT
3. POM Roman Goris	14772	947042	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Constantin Angelopoulos	10066	947997	PBBN
2. SGT Robert Maloney	05057	930640	077 PCT
3. POM David Lamarre	01841	947929	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Denis Omahoney	Force: PO Denis Omahoney struck § 87(2)(b) with a baton.	
B.POM Denis Omahoney	Force: PO Denis Omahoney used pepper spray against § 87(2)(b)	
C.POM Denis Omahoney	Force: PO Denis Omahoney pointed his gun at § 87(2)(b)	
D.POM Roman Goris	Discourtesy: PO Roman Goris spoke obscenely and/or rudely to § 87(2)(b)	
E. Officers	Force: Officers hit § 87(2)(b) against a door.	

Case Summary

On January 30, 2011, § 87(2)(b) filed the following complaint with IAB over the telephone, generating the original log number, 11-04209 (encl. 6). The CCRB received the complaint on January 31, 2011 (encl. 8). § 87(2)(b) who did not witness the incident, filed the same complaint with the CCRB over the telephone on January 31, 2011, on behalf of her son, § 87(2)(b) (encl. 8).

On January 30, 2011, at approximately 9:30 p.m., § 87(2)(b) ran from PO Denis Omahoney to § 87(2)(b) in Brooklyn, and the following allegations resulted:

- **Allegation A—Physical Force:** PO Denis Omahoney struck § 87(2)(b) with a baton.

§ 87(2)(g)

- **Allegation B—Force:** PO Denis Omahoney used pepper spray against § 87(2)(b)

§ 87(2)(g)

- **Allegation C—Force:** PO Denis Omahoney pointed his gun at § 87(2)(b) § 87(2)(g)

- **Allegation D—Discourtesy:** PO Roman Goris spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(g)

- **Allegation E—Physical Force:** Officers hit § 87(2)(b) against a door. § 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) a 6'2" tall, 220 pound black male with black hair and brown eyes, was § 87(2)(b) the time of the incident. § 87(2)(b) was incarcerated at the time of the interview.

Medical Records Statement

On § 87(2)(b) § 87(2)(b) was taken to § 87(2)(b) in police custody. He reported that a police officer "hit [him] over the head with [a] baton" and "maced" him (encl. 7).

CCRB Testimony

§ 87(2)(b) provided a telephone statement on March 22, 2011 (encl. 9). On August 16, 2011, § 87(2)(b) was interviewed at § 87(2)(b) on Rikers Island (encl. 10). § 87(2)(b) On § 87(2)(b) at approximately 9:30 p.m., § 87(2)(b)(g) was at his Aunt § 87(2)(b)'s residence, located at § 87(2)(b) in Brooklyn. He

walked from there to a corner store at § 87(2)(b) and § 87(2)(b) a block and a half from his aunt's residence. He went there to buy cigar papers so he could return to his aunt's and smoke a marijuana-filled cigar (a blunt). He did not have marijuana with him when he went to the store, and he had not ingested any drugs or alcohol that day.

After leaving the store, a marked police van stopped beside him at § 87(2)(b) and § 87(2)(b). The investigation determined that PO Roman Goris was driving the van, and PO Denis Omahoney was in the front passenger seat. PO Omahoney stepped out of the van and said to § 87(2)(b) "Hey you, come here." § 87(2)(b) asked what he had done wrong. PO Omahoney responded, "Come the hell here." § 87(2)(b) was scared and he ran. He ran toward his aunt's residence, and PO Omahoney chased after him, while saying, "Stop." § 87(2)(b) made it to the front ramp of § 87(2)(b) before PO Omahoney caught up to him. As § 87(2)(b) was opening the front door to gain entrance into the vestibule, PO Omahoney hit him in the back of his head with an expandable baton. § 87(2)(b) fell to his knees and crawled inside the vestibule, while yelling, "Help! Help!" PO Omahoney stood over him in the vestibule and struck him about three more times with the expandable baton, hitting the back of his head. He sustained a laceration to the back of his head, which he figured was from the expandable baton. § 87(2)(b) did not attempt to push or strike PO Omahoney at any point.

§ 87(2)(b) continued to crawl inside his building and was able to push open the second door from the vestibule to the lobby while PO Omahoney was standing over him. When § 87(2)(b) got into the hallway, he noticed that § 87(2)(b) had come out of her apartment, which is on the § 87(2)(b) floor at the other end of the hallway roughly 40 feet away. Three or four members of § 87(2)(b)'s family also came into the hallway. The investigation determined that § 87(2)(b) (§ 87(2)(b)'s mother) and § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) (§ 87(2)(b)'s daughters) came into the hallway. The § 87(2)(b) stood by their apartment door. PO Omahoney tried to strike § 87(2)(b) again with the expandable baton in the back of his head, but § 87(2)(b) placed his hands behind his head to protect himself. When PO Omahoney swung the expandable baton again it got caught in between § 87(2)(b)'s middle fingers on his right hand. § 87(2)(b) jerked his hand away and the expandable baton came with it. § 87(2)(b) denied intentionally taking the expandable baton away from PO Omahoney. He stood up and turned and faced PO Omahoney. He immediately tossed the expandable baton to the ground and denied threatening PO Omahoney with it. PO Omahoney then pepper sprayed him, hitting his eyes.

§ 87(2)(b) staggered down the hallway, toward § 87(2)(b)'s apartment, and turned left into a short corridor. There is a radiator in that corridor, and he sat down on it. (See encl. 5 for the photographs of the entry hallway and side corridor.) § 87(2)(b) could not see clearly, but he overheard the § 87(2)(b) "screaming" and telling PO Omahoney, "Leave that boy alone." He thought PO Omahoney told the § 87(2)(b) to "Shut the hell up" or "Shut the fuck up," but he was not sure of the statement or to whom it was directed. PO Omahoney approached him and pulled out his gun and pointed it at him. § 87(2)(b) put his head down. PO Omahoney told him, "Don't move." Regardless, § 87(2)(b) stood up, and PO Omahoney grabbed him by his front collar and pulled him to the ground on his stomach. PO Omahoney stood behind him and briefly placed his gun at the back of his head. PO Omahoney put his gun away and handcuffed him. At about this point, his aunt, § 87(2)(b) and her husband, § 87(2)(b) arrived in the hallway and observed what was happening. As well, additional officers started to arrive. The investigation determined that the first responding officer was PO Goris, followed by PO Constantin Angelopoulos and his partner, PO David Lamarre. About 10 more unidentified officers in uniform then arrived, and § 87(2)(b) did not know who they were, stating they were of various races. Four of the officers—he did not know which ones—picked him up off the ground with each respective officer grabbing an arm or a leg. The officers carried him out of the building like that and used the top of his head "like a hammer" to open the vestibule doors. He was not injured

by it. The officers carried him to a marked police car, and placed him in the back of it. The investigation learned that PO Angelopoulos and PO David Lamarre drove § 87(2)(b) to the 77th Precinct stationhouse.

At the stationhouse, two EMTs arrived, and they wrapped gauze around his head and then drove him to § 87(2)(b) in police custody. At the hospital, a physician put a staple in the back of his head in the wrong spot. The physician removed the staple, and § 87(2)(b) refused to have her redo it. In lieu of the staples, she gave him ointment. § 87(2)(b) was taken back to the 77th Precinct stationhouse and then to Brooklyn Central Booking and then to Rikers Island. He did not know who processed his arrest. He was charged with § 87(2)(b)

§ 87(2)(b) He said he was arrested for a separate incident a week after he was released, for which he was incarcerated at the time of his interview.

While § 87(2)(b) was at § 87(2)(b), an IAB investigator arrived and took a photograph of the laceration at the back of § 87(2)(b)'s head (encl. 10-G).

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a 5'5" tall, 230 pound black female with black hair and brown eyes, was § 87(2)(b)

IAB Statement

On January 30, 2011, at approximately 9:43 p.m., § 87(2)(b) called 911, and she was transferred to the IAB command center where she reported that a police officer was "beating up on a boy" in the lobby of § 87(2)(b) (encl. 6).

CCRB Testimony

§ 87(2)(b) provided a telephone statement to the CCRB on August 17, 2011 (encl. 11). She provided a sworn statement at her home, § 87(2)(b) in Brooklyn, on August 24, 2011 (encl. 12). On § 87(2)(b) at approximately 9:42 p.m., § 87(2)(b) was inside of § 87(2)(b) in Brooklyn, § 87(2)(b). Her mother and her daughters were also there. § 87(2)(b) heard someone in the hallway calling for help and asking for § 87(2)(b) and § 87(2)(b) opened the apartment door, and then § 87(2)(b) and § 87(2)(b) came to the door. § 87(2)(b) observed § 87(2)(b) in a physical altercation with PO Omahoney at the other end of the hallway.

§ 87(2)(b) was on his stomach and PO Omahoney was on top of him with his knees in his back. PO Omahoney was hitting § 87(2)(b) with his expandable baton in the back of his head and upper back. § 87(2)(b) declined to estimate how many times PO Omahoney hit § 87(2)(b) but she said it was "a lot of times." § 87(2)(b) and § 87(2)(b) walked closer to PO Omahoney and § 87(2)(b) and came within 20 feet of them. § 87(2)(b) got off his stomach and onto his knees, while PO Omahoney was still striking him. § 87(2)(b) turned to his right and reached to his right with his left hand and grabbed PO Omahoney's expandable baton. § 87(2)(b) then stood up and faced PO Omahoney and grabbed PO Omahoney's expandable baton with his other hand. § 87(2)(b) and PO Omahoney each had two hands on the baton, and they engaged in a tug-of-war. PO Omahoney took one of his hands off the expandable baton, and with that hand he grabbed his pepper spray and "drenched" § 87(2)(b)'s face. § 87(2)(b) released the expandable baton and it fell to the ground.

§ 87(2)(b) looked blinded because he felt along the wall with his hands and walked to the side corridor. He walked down the side corridor, and § 87(2)(b) told him, "Get on the ground." § 87(2)(b) went down on one knee. By this point, the occupants of § 87(2)(b) § 87(2)(b) and § 87(2)(b) stepped into the hallway. § 87(2)(b) and § 87(2)(b)

apartment is the first apartment upon entering the building. PO Omahoney asked either § 87(2)(b) or § 87(2)(b) to pick up his radio, which at some point, § 87(2)(b) did not know when, PO Omahoney had lost. Either § 87(2)(b) or § 87(2)(b) handed the radio to him. PO Omahoney then pulled out his gun and walked toward § 87(2)(b). PO Omahoney pulled out his gun and pointed it in § 87(2)(b)'s direction and walked toward him. When he got up to § 87(2)(b) he put his gun away. § 87(2)(b) did not see PO Omahoney place his gun against § 87(2)(b)'s head or body.

PO Omahoney stood behind § 87(2)(b) and handcuffed him. The first back-up officer, whom § 87(2)(b) described as a bald Hispanic male, came into the building and ran toward § 87(2)(b). The investigation determined that PO Goris, a partially bald Hispanic male, was the first arriving back-up officer. PO Goris grabbed § 87(2)(b) by his front collar and pulled him to the ground on his stomach. § 87(2)(b) asked PO Goris, "What are you doing?" and conveyed to him that PO Omahoney had already apprehended § 87(2)(b). PO Goris walked toward her and said, "Get the fuck out of the hallway" and "Mind your motherfuckin' business." She told PO Goris that she was not leaving and that she was going to watch. Around this point, § 87(2)(b) and § 87(2)(b) came down the stairs and into the hallway, and numerous uniformed police officers—anywhere from 12 to 15—rushed inside the building. Several officers, she did not know which ones, led § 87(2)(b) out of the building by pulling on his arms, forcing him to move along. He was not carried. The officers did not hit his head against the vestibule doors. § 87(2)(b) did not observe any injuries on § 87(2)(b) stating, "They did not let us get that close to him."

Witness: § 87(2)(b)

- § 87(2)(b) a black female, was § 87(2)(b) at the time of the incident. § 87(2)(b) provided a telephone statement but refused to provide an in-person statement at the CCRB or at her home.

CCRB Testimony

§ 87(2)(b) provided the following telephone statement on August 17, 2011 (encl. 13). On § 87(2)(b) at approximately 9:42 p.m., § 87(2)(b) was sitting inside her apartment when she heard someone in the hallway saying, § 87(2)(b) help me." § 87(2)(b) opened her front apartment door. She observed PO Omahoney standing over § 87(2)(b) at the other end of the hallway. § 87(2)(b) was lying on his stomach. PO Omahoney was hitting § 87(2)(b) in the back of his head with a "stick." PO Omahoney hit § 87(2)(b) about four times. § 87(2)(b) stood up and "broke away" from PO Omahoney. § 87(2)(b) said she had difficulty remembering the chronology of events.) She next thought that § 87(2)(b) walked over to the radiator in the side corridor, and PO Omahoney followed behind him. PO Omahoney pulled out his gun and pointed it at § 87(2)(b). PO Omahoney then pepper sprayed § 87(2)(b) in his face. More officers arrived in the hallway and at least two officers helped § 87(2)(b) to his feet and walked him out of the building. One of the additional officers who arrived in the hallway "cursed" at § 87(2)(b) telling her to get out of the hallway. § 87(2)(b) could not recall what the curse was, and she did not interact with that officer and could not describe him or any of the other officers.

Witness: § 87(2)(b)

- § 87(2)(b) a black female, was § 87(2)(b) at the time of the incident. § 87(2)(b) provided a telephone statement but refused to provide an in-person statement at the CCRB. She was not home when the investigator performed field work at her apartment building.

CCRB Testimony

§ 87(2)(b) provided a telephone statement about the incident on August 17, 2011 (encl. 14). On § 87(2)(b) at approximately 9:42 p.m., § 87(2)(b) was inside of her residence, § 87(2)(b) on the § 87(2)(b) floor, when § 87(2)(b) called her and told her that the cops were in the lobby “beating up” her nephew, § 87(2)(b). She and § 87(2)(b) went downstairs. When she got there, there were anywhere from 10 to 14 officers present, as well as the § 87(2)(b) and she said the situation was confusing. She did not witness § 87(2)(b)’s apprehension, and she could not describe the officers. § 87(2)(b) was lying on his stomach in handcuffs. At least two white male officers picked § 87(2)(b) up and carried him “like a hog” by his arms and his legs and used his head to open the front building doors.

Attempts to Contact Civilians

- The investigator performed field work at § 87(2)(b) on August 24, 2011, and interviewed § 87(2)(b) and canvassed for witnesses. No incident witnesses were located. § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were not home.
- § 87(2)(b) did not respond to letters and calls from the investigator. A working telephone number for § 87(2)(b), § 87(2)(b) and § 87(2)(b) was not found, and neither one of them responded to please-call letters. § 87(2)(b) did not want § 87(2)(b), § 87(2)(b) to be a part of the investigation. § 87(2)(b) was unavailable.

NYPD Statements:

Subject Officer: PO DENIS OMAHONEY

- *PO Omahoney, a 6’0” tall, 170 pound white male with green eyes and brown hair, was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, PO Omahoney was assigned to Robbery Auto in the 77th Precinct in a marked van, number 8556. He was dressed in uniform, his tour was from 4:00 p.m. to 12:35 a.m., and he partnered with PO Roman Goris.*

Memo Book

PO Omahoney made the following entries in his memo book (encl. 15): At 9:30 p.m., he attempted to stop § 87(2)(b) at § 87(2)(b) and § 87(2)(b) and a foot pursuit ensued. At 9:42 p.m., PO Angelopoulos arrested § 87(2)(b). At 9:50 p.m., PO Omahoney returned to the 77th Precinct stationhouse and was then transported to § 87(2)(b).

Line of Duty Injury Report

PO Omahoney wrote, “I [PO Omahoney] observed defendant § 87(2)(b) with a gravity knife clipped to his pocket. Upon approach, the defendant threw the knife away. As I tried to put handcuffs on the defendant, he violently resisted arrest by flailing his arms, refusing to be cuffed, punching and kicking me.” Sergeant Daniel Lee further wrote on the report that PO Omahoney’s right hand and chest were injured as a result (encl. 16).

CCRB Testimony

PO Omahoney provided a sworn statement at the CCRB on September 30, 2011 (encl. 17). On January 30, 2011, at approximately 9:30 p.m., PO Omahoney and his partner, PO Roman Goris, were driving on patrol in a marked van. PO Omahoney was in the front passenger seat. They were traveling southbound at a speed of five miles per hour on § 87(2)(b) in between § 87(2)(b) and § 87(2)(b) when PO Omahoney observed § 87(2)(b) walking on the sidewalk, about 7 to 10 feet away, on § 87(2)(b). From inside the van, PO Omahoney observed a knife

handle protruding out a couple of inches from one of § 87(2)(b)'s front pockets, and it was clipped to his pocket. PO Omahoney did not see a blade, but he saw a button on the handle that allowed the blade to release. Based on his training and experience, he thought § 87(2)(b) had a gravity knife. He told PO Goris what he observed. PO Goris stopped the van in the roadway, and PO Omahoney got out. There was no place to position the van that did not block traffic, so PO Goris did not exit the van because he had to search for an adequate place to stop.

PO Omahoney instructed § 87(2)(b) to stop. Without response § 87(2)(b) ran north and turned left onto § 87(2)(b). PO Omahoney chased him, and he lost track of PO Goris. § 87(2)(b) tossed the knife to the ground while he was running. PO Omahoney did not have time to stop and pick up the knife. He did not see where § 87(2)(b) threw it, it was not recovered and a search was not performed to find it. A block and a half later, he caught up to § 87(2)(b) who was now going up the front steps of § 87(2)(b). § 87(2)(b) was one step above PO Omahoney, and he grabbed § 87(2)(b) from behind by his sweatshirt hood. § 87(2)(b) "mule kicked" him in his left ribs, injuring him. He lost his grasp and § 87(2)(b) went inside the building. He went after § 87(2)(b) and caught up to him again past the vestibule. They met face to face in front of the first apartment in the hallway.

§ 87(2)(b) punched PO Omahoney in his body. He feared for his safety because § 87(2)(b) was much larger than him (he described him as 6'4" tall, 280 pounds), he was alone with § 87(2)(b) in a confined space, § 87(2)(b) had been observed with a weapon and § 87(2)(b) was resisting arrest. He pulled out his pepper spray and deployed it in § 87(2)(b)'s face. § 87(2)(b) was disturbed by the pepper spray, but he continued to punch at PO Omahoney. PO Omahoney pulled out his expandable baton and swung it at § 87(2)(b)'s legs. He did so because he wanted to create some space between him and § 87(2)(b) and he wanted to gain § 87(2)(b)'s compliance. He hit § 87(2)(b) in his legs. He did not recall how many times he hit § 87(2)(b) with his expandable baton, but it was at least once and it was only in his legs. He did not intend to strike § 87(2)(b) anywhere else. He did not hit § 87(2)(b) in the back of his head, and he never attempted to. He never drew his expandable baton prior to entering the hallway, and he never stood over § 87(2)(b) while wielding his expandable baton.

PO Omahoney grabbed § 87(2)(b) by one of his shoulders and tripped him to the ground; they both fell down. While § 87(2)(b) was falling, he flailed his arms and inadvertently hit the expandable baton out of PO Omahoney's hands. On the ground, they wrestled and reached for the expandable baton. PO Omahoney got on top of § 87(2)(b) and § 87(2)(b) "thrashed" him off. § 87(2)(b) grabbed the expandable baton, stood up and wielded it over his head. PO Omahoney was fearful that § 87(2)(b) was going to strike him and said § 87(2)(b)'s actions constituted "menacing" a police officer. PO Omahoney got on one knee and pulled out his gun and pointed it at § 87(2)(b). He told § 87(2)(b) to drop his baton. § 87(2)(b) took two to three steps backward and then dropped it. The two of them were now farther down the hallway. The hallway is L-shaped, and they made it to the turn in the hallway. PO Omahoney told § 87(2)(b) to lie down, and he did. Moreover, at some point, PO Omahoney was not sure when, he requested back up on his radio. He had momentarily lost his radio. He presumed it was knocked off his belt when he was wrestling with § 87(2)(b). In any case, he was able to recover it.

PO Omahoney did not know if any people in the building had stepped out of their apartments. He paid no attention to potential bystanders. He holstered his gun as soon as § 87(2)(b) lay on the ground. He grabbed § 87(2)(b)'s arms and handcuffed one of them. By this point, additional officers arrived. He could recall only that ultimately PO Goris and PO Angelopoulos arrived in the hallway. PO Omahoney did not finish handcuffing § 87(2)(b) because he was injured, other officers did. PO Omahoney did not recall if § 87(2)(b) walked out of the building voluntarily or involuntarily, but he did not see § 87(2)(b) get carried out, and no officers hit his head against the front doors. PO Omahoney did not hear an officer curse at § 87(2)(b). PO Goris drove PO

Omahoney to the 77th Precinct stationhouse, and different officers transported § 87(2)(b).

At the stationhouse, PO Omahoney called an ambulance for himself because his left ribs hurt. He was transported to § 87(2)(b). § 87(2)(b)'s arrest was then assigned to PO Angelopoulos. At the hospital, a physician told PO Omahoney his left lung and left ribs were bruised. PO Omahoney heard that § 87(2)(b) was taken to a hospital, but he did not know why. He had not observed any injuries on § 87(2)(b).

Witness Officer: PO ROMAN GORIS

- *PO Goris, a 5'11" tall, 235 pound Hispanic male with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident.*
- *On the date of the incident, PO Goris was assigned to Robbery Auto in the 77th Precinct in a marked van, number 8556. He was dressed in uniform, his tour was from 4:00 p.m. to 12:35 a.m., and he partnered with PO Denis Omahoney.*

Memo Book

PO Goris made the following entries in his memo book (encl. 18): At 9:30 p.m., PO Omahoney tried to stop § 87(2)(b) at § 87(2)(b) and § 87(2)(b). Upon approach, § 87(2)(b) ran westbound on § 87(2)(b) and PO Omahoney ran after him. PO Goris lost sight of PO Omahoney for a short time period. When PO Goris arrived at § 87(2)(b) he went inside and observed § 87(2)(b) in handcuffs and there were a lot of people there, screaming.

CCRB Testimony

PO Goris was provided a sworn statement at the CCRB on October 13, 2011 (encl. 19). On January 30, 2011, at approximately 9:30 p.m., PO Goris and PO Omahoney were on patrol on § 87(2)(b) and § 87(2)(b). PO Goris was driving the van at a speed of about 10 miles per hour when PO Omahoney said he observed § 87(2)(b) walking on the sidewalk with a knife. PO Omahoney did not convey further information to PO Goris about the knife such as where § 87(2)(b) had it. PO Goris stopped the van, and PO Omahoney got out and told § 87(2)(b) "Come here." § 87(2)(b) took off running on § 87(2)(b). PO Omahoney gave chase to § 87(2)(b). PO Goris decided to drive after them. He made a U-turn on § 87(2)(b) and turned onto § 87(2)(b) but, by the time he did this, he lost sight of § 87(2)(b) and PO Omahoney. PO Goris drove on § 87(2)(b) and stopped at § 87(2)(b). About 30 seconds later, PO Omahoney stated over the radio that he was at § 87(2)(b). PO Goris drove there and went inside. He was the first responding officer. He observed PO Omahoney at the opposite end of the hallway holding his chest. § 87(2)(b) was sitting on the ground in handcuffs. PO Goris did not witness § 87(2)(b)'s apprehension. PO Goris never learned what had taken place from the time he had lost sight of PO Omahoney to when he had next seen him, a span of about two minutes.

PO Goris tried to stand § 87(2)(b) to his feet. He could not do it because § 87(2)(b) was too heavy. § 87(2)(b) did not resist him.) There were anywhere from seven to ten people in the hallway, and they were yelling and standing within four steps of § 87(2)(b). At about this time, numerous additional officers started to arrive. He could not recall who any of the additional officers were. PO Goris conducted crowd control by telling the people in the hallway to stand away from § 87(2)(b). The people in the crowd were compliant with his instructions. He did not curse at any of the people in the hallway, and he did not hear another officer curse either. He did not recall if § 87(2)(b) was one of the people in the hallway. At the CCRB, PO Goris viewed § 87(2)(b)'s photograph and did not recognize her. Two unidentified officers stood § 87(2)(b) to his feet. § 87(2)(b) refused to stand up, and once he was standing, he refused to walk. The two officers held § 87(2)(b) by his arms and § 87(2)(b) dragged his feet as the two officers pulled him by his arms out of the building. § 87(2)(b) was not carried out of the building, and the

officers did not hit his head against the front doors. PO Goris drove with PO Omahoney to the 77th Precinct stationhouse, and PO Omahoney told him that § 87(2)(b) had kicked him in his chest and that his chest hurt. PO Omahoney told him nothing else about what had happened. At the stationhouse, PO Omahoney was taken away to a hospital, and the arrest was reassigned to PO Angelopoulos. PO Goris briefly interacted with § 87(2)(b) and § 87(2)(b) told him his asthma was acting up, and PO Goris observed a small cut that was bleeding lightly at the back of § 87(2)(b)'s head. PO Goris did not know how § 87(2)(b) sustained the cut. An ambulance was requested to the stationhouse for § 87(2)(b).

Witness Officer: PO CONSTANTIN ANGELOPOULOS

- *PO Angelopoulos, a 5'11" tall, 182 pound white male with brown eyes, was § 87(2)(b) old at the time of the incident. He has brown hair but is bald on top, and he wears glasses.*
- *On the date of the incident, PO Angelopoulos was assigned to Robbery Auto 2 in a marked vehicle, number 2299, in the 77th Precinct. He was dressed in uniform, and his tour was from 4:00 p.m. to 12:35 a.m. He partnered with PO David Lamarre.*

Memo Book

PO Angelopoulos made the following entries in his memo book (encl. 20): At 9:32 p.m., he responded to a request to assist an officer at § 87(2)(b). At 9:42 p.m., he placed § 87(2)(b) under arrest. He transported § 87(2)(b) back to the 77th Precinct stationhouse.

On-line Booking Sheet and UF 61

PO Angelopoulos charged § 87(2)(b) with § 87(2)(a) 160.50

§ 87(2)(a) 160.50
§ 87(2)(a) 160.50
§ 87(2)(a) 160.50
§ 87(2)(a) 160.50

CCRB Testimony

PO Angelopoulos provided a sworn statement at the CCRB on September 30, 2011 (encl. 23). On January 30, 2011, at approximately 9:35 p.m., PO Angelopoulos was in his vehicle with PO Lamarre when PO Omahoney "screamed" over the radio that he needed assistance at § 87(2)(b). PO Angelopoulos and PO Lamarre drove there and went inside, and he observed PO Omahoney and PO Goris at the end of the hallway handcuffing § 87(2)(b) who was on the ground. PO Angelopoulos walked toward the officers, but he did not assist in handcuffing § 87(2)(b). There were "several" people in the hallway and they were "screaming." He told the people in the hallway to stand back. PO Lamarre assisted him in conducting crowd control. No officer cursed at any of the people in the hallway.

Additional officers started to arrive. PO Angelopoulos did not recall who they were. PO Angelopoulos and maybe two other unidentified officers stood § 87(2)(b) to his feet. § 87(2)(b) had to be lifted to his feet because he refused to stand up. However, once he was standing he walked out of the building on his own. § 87(2)(b) was not carried, and his head was not hit against the building's front doors. PO Angelopoulos and PO Lamarre drove him to the 77th Precinct stationhouse. PO Omahoney came to the stationhouse but left quickly because he had injured ribs. As a result, PO Angelopoulos processed § 87(2)(b)'s arrest. Before PO Omahoney left, he told PO Angelopoulos that § 87(2)(b) was observed with a gravity knife and then ran from him, that he had struggled with § 87(2)(b) in the hallway, that § 87(2)(b) had taken his expandable baton away from him, that § 87(2)(b) had kicked him in his ribs and that he had pepper sprayed § 87(2)(b). PO Angelopoulos noticed that § 87(2)(b) had a cut on the back of his

head that was bleeding lightly. EMS was alerted, and they arrived at the stationhouse and took § 87(2)(b) to the hospital. PO Angelopoulos did not know how § 87(2)(b) had sustained the cut.

Subject Officer: PO DAVID LAMARRE

- PO Lamarre, a 5'9" tall, 165 pound black male with black hair and brown eyes, was § 87(2)(b) years old at the time of the incident.
- On the date of the incident, PO Lamarre was assigned to conditions robbery in the 77th Precinct. He was dressed in uniform, and his tour was from 4:00 p.m. to 12:35 a.m. He partnered with PO Angelopoulos, and they worked in a marked vehicle, number 2299.

Memo Book

PO Lamarre made the following entries in his memo book (encl. 24): At 9:35 p.m., PO Omahoney requested additional officers to § 87(2)(b) in Brooklyn.

CCRB Testimony

PO Lamarre provided a sworn statement at the CCRB on October 31, 2011 (encl. 25). § 87(2)(g) On January 30, 2011, at approximately 9:35 p.m., PO Lamarre responded to § 87(2)(b). Upon arrival, he conducted crowd control. He did not recall having spoken with § 87(2)(b) and no officer cursed at any bystander. He did not assist in taking § 87(2)(b) out of the building, but § 87(2)(b) was not carried out, and his head was not hit against the building's front doors. He transported § 87(2)(b) to the 77th Precinct stationhouse. He did not further interact with him.

Medical Records

On § 87(2)(b) § 87(2)(b) was taken to § 87(2)(b). He had an injury to the back of his head that was tender and bleeding. A physician wrote the following: "You have a .75 centimeter laceration. We washed and cleaned it. We tried to staple you[r] [laceration], but the staple didn't go in properly the first time, and you declined a second try. We will give you some Ibuprofen and Bacitracin cream for your wound." The records contain no report of § 87(2)(b) sustaining a leg injury (encl. 27).

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of September 15, 2011, with regard to the incident (encl. 33).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint in which § 87(2)(b) has been involved (encl. 4B).
- § 87(2)(b) filed two past complaints § 87(2)(b)

Subject Officers CCRB History

- PO Denis Omahoney has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 3A).
- PO Roman Goris has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 3B).

Conclusion

Identification of Subject Officers

PO Omahoney said he struck § 87(2)(b) with his expandable baton, pepper sprayed him and pointed his gun at him. § 87(2)(g)

§ 87(2)(b) said the second officer on scene was a bald, Hispanic male, who cursed at her. PO Roman Goris is a partially bald Hispanic male and was the second officer on scene. § 87(2)(g) § 87(2)(b) said four officers used his head to open the front doors. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A—Physical Force: PO Denis Omahoney struck § 87(2)(b) with a baton.

§ 87(2)(b) alleged that PO Omahoney hit him in the back of the head with his baton four times.

§ 87(2)(b) gave a consistent statement to medical personnel as well, and his medical records indicate that he sustained a laceration to the back of his head. Witnesses, § 87(2)(b) and § 87(2)(b) confirmed that PO Omahoney hit § 87(2)(b) in the back of the head with a baton several times. PO Omahoney stated that he swung his baton at § 87(2)(b) but only at § 87(2)(b)'s legs. § 87(2)(b)'s medical records do not contain report of a leg injury. § 87(2)(g)

PO Omahoney said he swung his baton after § 87(2)(b) “mule kicked” him in his left ribs, from which his Line of Duty injury report confirms his left ribs and lung were bruised. Further, PO Omahoney stated that § 87(2)(b) threw punches at him, also consistent with the Line of Duty paperwork, and did not submit upon being pepper sprayed. § 87(2)(g)

According to Patrol Guide Procedure 203-11, “Only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody” (encl. 2A). Furthermore, according to Police Department v. Scully, OATH Index No. 1411/00, in order for an officer’s use of force to constitute misconduct when applied against an individual who is resisting arrest, the force must be manifestly or obviously unreasonable (encl. 2B-2S).

§ 87(2)(g)

§ 87(2)(g) .

Allegation B—Force: PO Denis Omahoney used pepper spray against § 87(2)(b)

Allegation C—Force: PO Denis Omahoney pointed his gun at § 87(2)(b)

It is undisputed that PO Omahoney pepper sprayed § 87(2)(b) and pointed his gun at him.

§ 87(2)(g)

PO Omahoney said he pepper sprayed § 87(2)(b) because § 87(2)(b) was fighting with him and because he was alone with § 87(2)(b). Further, he said that § 87(2)(b) got a hold of his baton and wielded it over his head, at which point PO Omahoney pointed his gun at him. Though § 87(2)(b) said he accidentally took away PO Omahoney's baton and that PO Omahoney placed his gun at the back of his head, § 87(2)(b) confirmed that § 87(2)(b) intentionally took the baton from PO Omahoney and did not place his gun at the back of § 87(2)(b)'s head. § 87(2)(g)

According to Patrol Guide Procedure 212-95, "O.C. pepper spray may be used when a member reasonably believes it is necessary to effect an arrest of a resisting suspect" (encl. 2V). Furthermore, according to Patrol Guide Procedure 203-12, police officers can use deadly physical force against another person if they have probable cause to believe they must protect themselves or another person present from imminent death or serious physical injury (encl. 2Y).

§ 87(2)(g)

Allegation D—Discourtesy: PO Roman Goris spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Goris told her, "Get the fuck out of the hallway" and "Mind your motherfuckin' business." PO Goris denied making the remarks § 87(2)(g)

Allegation E—Physical Force: Officers hit § 87(2)(b) against a door.

§ 87(2)(b) said he was carried out of the building by four unidentified officers and they opened the front doors by using the top of his head, yet he did not report the allegation to medical personnel and the top of his head was not injured. § 87(2)(b) corroborated the allegation § 87(2)(g)

§ 87(2)(g) § 87(2)(b) said that § 87(2)(b) walked out of the building and so did all of the interviewed officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date